

**DEPARTMENT OF TRANSPORTATION
FEDERAL HIGHWAY ADMINISTRATION (FHWA)
WESTERN FEDERAL LANDS HIGHWAY DIVISION (WFLHD)**

**Justification for Restricted Competition Below SAT
Brand Name**

Solicitation Number 69056726Q000021

Leica iCON GNSS Equipment packages and peripheral services

1. Contracting activity/agency

FHWA-WFLHD, 610 East Fifth Street, Vancouver, WA 98661-3801.

2. Description of supplies and/or services required to meet agency need

WFLHD requires replacement of survey equipment owned by WFLHD survey and construction. This is needed to ensure our equipment resources are up to date and adequate to complete the survey-related work required of the construction branch.

Leica brand name equipment is required due to the inability to interconnect other brands, the additional effort that would be required by changing or mixing brands of survey equipment, and the limited customer support offered by other brands in the Pacific Northwest. Introduction of a different brand of equipment would result in a blending or combination of field operations and procedures and significantly disrupt the established workflow. Separate hardware such as reflectors would also need to be purchased to work with any non-Leica equipment.

The total estimated amount of this anticipated contract is \$290,000.00, to be expended under a single procurement action.

3. Rationale

The requirement is for Leica equipment which is needed for continuity of application. The proposed Leica iCON equipment must be able to transmit Leica positional data in such a way that other receivers can receive consistent reference information in real-time. Introduction of a different brand of equipment would result in a blending or combination of data formats. All of the agency's current equipment is Leica brand and because the data structure is proprietary and specific to the Leica brand, only equipment specifically designed by Leica will meet the agency's needs and ensure interoperability with the current equipment.

Additionally, ancillary equipment such as poles, batteries, tripod adapters, brackets, and battery chargers are for the most part NOT interchangeable between brands. In the case of batteries and chargers, those pieces from another manufacturer would not be compatible with and could not be compatible with existing Leica equipment that WFLHD still has in service. As for the construction inspection perspective, support and training for inspection staff can easily be provided by Geomatics staff if the same general equipment is used by both teams. There is no incentive to try to match equipment with construction contractors since there are too many brands and models in use today. There is also little or no advantage to having the

inspection staff use the same type of equipment as their contractor.

4. Authority

The authority to enter a contract for this effort with restricted competition is 41 U.S.C. 1901 under FAR 12.201-1, Simplified procedures.

CERTIFICATIONS AND APPROVAL

Technical/Requirements Certification. I certify that the facts and representations under my cognizance which are included in this justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief. Additionally, I certify that the above information and the technical evidence supporting this justification are complete and accurate.

Knud W. Martin, Construction Operations Engineer Date _____

Contracting Officer Certification. I certify that this justification is accurate and complete to the best of my knowledge and belief and represents the best value and lowest overall cost alternative to meet the Government's needs. Since this effort does not exceed the Simplified Acquisition Threshold, this certification serves as approval.

Doug Taylor, Contracting Officer

Date